



Notification Waiver Determination

Mitsui – Rhodes Ridge Joint Venture

Acquisition	Mitsui & Co., Ltd (Mitsui), via its wholly owned subsidiary SPC Blue Pty Ltd (SPC Blue), applied for a notification waiver in respect of its acquisition of a 15% interest in the Rhodes Ridge Joint Venture (RRJV), to the extent that it remains to be put into effect after 21 July 2026, and as described in the transaction documents provided as part of the application (the Acquisition). The Australian Competition and Consumer Commission (the ACCC) previously provided a letter to Mitsui on 21 July 2025 in relation to Mitsui's proposed acquisition of the 15% interest in the RRJV which had the effect, pursuant to section 189 of the <i>Competition and Consumer Act 2010</i> (the Act), that Division 2 of Part IVA of the Act would not apply to the acquisition if it is put into effect within 12 months. Mitsui considers that certain steps contemplated by the Acquisition may remain to be completed after 21 July 2026.
Determination	The ACCC has determined under section 51ABV(1)(a) of the Act that the Acquisition is not required to be notified.
Date of determination	8 July 2026

Parties to the Acquisition	The acquirer, Mitsui, is a Japanese general trading company with seven operating segments: : i) iron & steel products, ii) mineral & metal resources, iii) energy, iv) machinery & infrastructure, v) chemicals, vi) lifestyle and innovation, and vii) corporate development. It invests in Australian iron ore through minority interests in Pilbara joint ventures. The RRJV is an unincorporated joint venture concerning undeveloped iron ore deposits at Rhodes Ridge in the Eastern Pilbara, Western Australia. The RRJV is managed and operated by Rio Tinto subsidiaries and there is no current iron ore production from the RRJV assets. Rio Tinto currently owns a 50% participating interest in the RRJV and AMB Holdings Pty Ltd currently owns a 10% participating interest. In addition to the 15% interest, Mitsui is acquiring a 25% interest in the RRJV under a separate transaction.
Explanation for determination	In making this notification waiver determination, the ACCC has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. Mitsui's share in the supply of iron ore and share in iron ore reserves in Australia and globally is low b. there are several alternative global suppliers that supply iron ore and hold iron ore reserves in Australia and globally c. the Acquisition is unlikely to result in any substantive change in the control of the RRJV. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act